

21BBCV00971 21BBCV00971

County: los-angeles

Division: Civil Law and Motion

Department: B

Hearing date: 2026-07-17

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Case Number: 21BBCV00971 Hearing Date: July 17, 2026 Dept: B

Hon. Victor

Avila, Dept B

MOTION FOR

TERMINATING SANCTIONS

Hearing Date: 7/17/26

CASE NO./NAME: 21BBCV00971 Amy R. Amira, Trustee of The
Cynthia L. Amira Family Trust v. CMM, LLP et al.

Moving Party: Plaintiff Amy

R. Amira

Responding Party: Unopposed

Notice: Insufficient

Ruling: DENY

NOTICE

The Court is not requesting oral argument on this matter. The Court is guided by California Rules of Court, Rule 3.1308(a)(1) whereby notice of intent to appear is requested. Unless the Court directs argument in the Tentative Ruling, no argument is requested and any party seeking argument should notify all other parties and the court by 4:00 p.m. on the court day before the hearing of the party's intention to

appear and argue. The tentative ruling will become the ruling of the court if no argument is received.

Notice may be given either by email at or by telephone at (818) 260-8422.

BACKGROUND

This is a real estate investment dispute case. On May 23, 2025, Plaintiff Amy R. Amira, as Trustee of The Cynthia L. Amira Family Trust (Plaintiff) filed the operative Third Amended Complaint asserting twelve causes of action against nine defendants: (1) CMM, LLP (CMM), (2) Gregory A. Mogab (Mogab), (3) OMG Construction Management, LLC (OMG), (4) Agustin Gonzalez (Gonzalez), (5) Anthony Olmedo (Olmedo), (6) Home Trend Developers, Inc. (Home Trend), (7) Ira J. Boren (Boren), (8) Robert Schreiber (Schreiber) and (9) derivatively and nominally defendant Hazelhurst Place Properties, L.P. ("Hazelhurst" collectively, Defendants). Plaintiff accuses Defendants of orchestrating a fraudulent investment scheme and taking Plaintiff's investment for personal use and expenses.

On April 30, 2025, Plaintiff filed the instant motion for terminating sanctions against defendant Olmedo only, based on Olmedo's repeated failures to comply with discovery and the Court's prior orders. Olmedo has not filed an opposition as of July 16, 2026.

LEGAL STANDARD

Code of Civil Procedure § 2023.030 gives the court the discretion to impose sanctions against anyone engaging in a misuse of the discovery process. Misuse of the discovery process includes failure to respond to an authorized method of discovery or disobeying a court order to provide discovery. (Code Civ. Proc., § 2023.010, subds. (d), (g).) A court may impose escalating sanctions where a party disobeys a discovery order. (Code Civ. Proc. § 2025.450(h).) A court may impose terminating sanctions by striking pleadings of the party engaged in misuse of discovery or entering default judgment. (Code Civ. Proc., § 2023.030, subd. (d).) A violation of a discovery order is sufficient for the imposition of terminating sanctions. (Collison & Kaplan v. Hartunian (1994) 21 Cal.App.4th 1611, 1620.) Terminating sanctions are appropriate when a party persists in disobeying the court's orders. (Deyo v. Kilbourne (1978)

84 Cal.App.3d 771, 795-796.)

The court

should consider the totality of the circumstances, including conduct of the party to determine if the actions were willful, the detriment to the propounding party, and the number of formal and informal attempts to obtain discovery. (Lang v. Hochman (2000) 77 Cal.App.4th 1225, 1246.) If a lesser sanction fails to curb abuse, a greater sanction is warranted. (Van Sickle v. Gilbert (2011) 196 Cal.App.4th 1495, 1516.) However, “the unsuccessful imposition of a lesser sanction is not an absolute prerequisite to the utilization of the ultimate sanction.” (Deyo, supra, 84 Cal.App.3d at p. 787.) Before any sanctions may be imposed the court must make an express finding that there has been a willful failure of the party to serve the required answers. (Fairfield v. Superior Court for Los Angeles County (1966) 246 Cal.App.2d 113, 118.) Lack of diligence may be deemed willful where the party understood its obligation, had the ability to comply, and failed to comply. (Deyo, supra, 84 Cal.App.3d at p. 787; Fred Howland Co. v. Superior Court of Los Angeles County (1966) 244 Cal.App.2d 605, 610-611.) The party who failed to comply with discovery obligations has the burden of showing that the failure was not willful. (Deyo, supra, 84 Cal.App.3d at p. 788; Cornwall v. Santa Monica Dairy Co. (1977) 66 Cal.App.3d 250; Evid. Code, §§ 500, 605.)

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terminating sanction is a “drastic measure which should be employed with caution.” (Deyo, 84 Cal.App.3d at p. 793.) “A decision to order terminating sanctions should not be made lightly. But where a violation is willful, preceded by a history of abuse, and the evidence shows that less severe sanctions would not produce compliance with the discovery rules, the trial court is justified in imposing the ultimate sanction.” (Mileikowsky v. Tenet Healthsystem (2005) 128 Cal.App.4th 262, 279-280.)

DISCUSSION

Plaintiff argues that Olmedo, who represents himself pro per, has chosen not to participate in this case. (Mot., p. 3.) Plaintiff argues that Olmedo abruptly terminated his previous deposition and refused to reschedule or appear pursuant to court order. (Ibid.) Plaintiff argues

that it is clear Olmedo has willfully disregarded his discovery obligations and Court orders. (Ibid.) Plaintiff argues that terminating sanctions are needed to mitigate the prejudice caused by Olmedo's conduct and disregard for important discovery procedures. (Mot., p. 5.) Plaintiff argues that Olmedo is a central player in the alleged fraudulent scheme and allowing Olmedo to appear at trial after willfully ignoring Court orders and avoiding discovery would be wholly unfair. (Ibid.)

Here, the Court finds that Olmedo's violations were willful. On December 4, 2024, Olmedo and Plaintiff's counsel logged into a virtual deposition session where Olmedo appeared briefly on video. (Markevitch Decl., ¶ 4.) Plaintiff's counsel declares that Olmedo appeared to be walking around outside and from the outset let Plaintiff's counsel know he was only available for two hours, even though Plaintiff's counsel advised Olmedo the deposition would take up to seven hours. (Markevitch Decl., ¶¶ 4-5.) Plaintiff's counsel declares that Olmedo then suddenly disconnected from the deposition without warning and did so again a few more times before communicating to Plaintiff's counsel that he was going to look for a Starbucks to establish a better connection. (Markevitch Decl., ¶¶ 5-7; Exh. 2.) In the email communication, Olmedo reveals he did not go look for a Starbucks as he had indicated prior and did not feel he would have time to talk anyway. (Markevitch Decl., Exh. 2, p. 2.)

On March 10, 2025, the Court granted Plaintiff's unopposed motion to compel the deposition of Olmedo. (Robinson Decl., Exh. 4.) The Court imposed sanctions of \$2,185.00 on Olmedo. (Ibid.) On March 14, 2025, Plaintiff sent Olmedo a copy of the Court's order via email, to no response. (Robinson Decl., Exh. 5.) On March 24, 2025, Plaintiff electronically served Olmedo a second amended deposition notice setting the deposition for March 31, 2025. (Robinson Decl., Exh. 6.) Olmedo failed to appear at the deposition and did not file any objections. (Robinson Decl., Exh. 7.) This was Olmedo's second non-appearance after Plaintiff's counsel deemed Olmedo's first deposition a non-appearance due to its quick and abrupt termination. (Markevitch Decl., Exh. 3.) On March 31, 2025, Plaintiff reached out to Olmedo via email to inquire about his non-appearance in attempt to reschedule and Olmedo did not respond. (Robinson Decl., Exh. 8.) On April 18, 2025, Plaintiff once more reached out to Olmedo via email to inquire about the deposition, Olmedo did not respond. (Robinson Decl., Exh. 9.)

Since December of 2024, Olmedo has refused to appear for a Court ordered deposition, disregarded the discovery process, and failed

to respond to any communications from Plaintiff's counsel. (Robinson Decl., ¶ 8.) Thus, the Court finds a willful abandonment of the litigation process.

The burden then shifts to Olmedo to show the failures were not willful. (*Deyo v. Kilbourne* (1978) 84 Cal.App.3d 771, 788; *Cornwall v. Santa Monica Dairy Co.* (1977) 66 Cal.App.3d 250; Evid. Code, §§ 500, 605.) Olmedo filed no opposition and therefore made no showing that the repeated failures to appear were not willful.

However, the Court finds service inadequate. In civil cases involving both represented and self-represented parties, each self-represented party or other person is to file, serve, and be served with documents by non-electronic means unless the self-represented party or other person affirmatively agrees otherwise. (Cal. Rules of Court, rule 2.253(b)(3).) A self-represented party may express consent to electronic service by either (1) serving a notice on all parties and filing the notice with the court, or (2) manifesting affirmative through electronic means with the court and concurrently providing the party's electronic address. (Code Civ. Proc., § 1010.6(c)(3).) The act of electronic filing shall not be construed as express consent. (*Ibid.*) Here, the Court finds no record of Olmedo, who is in proper, consenting to electronic service. An email communication wherein Olmedo acknowledges he is without counsel in response to the notice of deposition is not explicit consent to electronic notice. (See *Markevitch Decl.*, Exh. 2, pp. 4-5.) Thus, Olmedo has not properly been given notice, and his repeated failures to appear are not considered willful.

For this reason, the motion for terminating sanctions is DENIED.

CONCLUSION AND ORDER

Plaintiff Amy

R. Amira's motion for terminating sanctions is DENIED.

Plaintiff shall provide proper notice of this order.